

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

Jake Roland Ford	)	C.A. No.: 2:26-cv-00666-DCN
	)	
Plaintiff,	)	COMPLAINT
	)	(Jury Trial Demanded)
v.	)	
	)	
The United States of America	)	
	)	
Defendant.	)	

Plaintiff, by and through undersigned counsel, brings this civil action against the United States of America pursuant to the Federal Tort Claims Act (“FTCA”), 28 U.S.C. §§ 1346(b), 2671–2680, and alleges as follows:

PARTIES, JURISDICTION, AND VENUE

1. Plaintiff Jake Roland Ford (“Plaintiff”) is a citizen and resident of Georgetown County, South Carolina, which is located in the Charleston Division of the United States District Court.

2. The Defendant is the United States of America (“USA”), which may be sued under the FTCA for the negligent acts or omissions of its employees acting within the scope of their employment.

3. This action is brought against USA pursuant to the Federal Tort Claims Act, 28 U.S.C. § 2671, et seq and 28 U.S.C. § 1346(b)(1) for money damages as compensation for injuries to Plaintiff, caused by the acts of employees, servants, and agents of the United States Government, working for the United States Postal Service (“USPS”).

4. At all relevant times, Mareen Ali Jahanbakhsh (“the USPS Driver”) was an employee of the USPS, a federal agency, and was acting within the course and scope of his employment.

5. Venue is proper in this judicial district pursuant to 28 U.S.C. § 1402(b) because the acts complained of occurred in the Charleston Division of the United States District Court.

6. In addition, venue is proper in this Court in that all, or a substantial part of, the acts and/or omissions forming the basis of these claims occurred in the Charleston Division.

7. Plaintiff fully complied with the provisions of 28 U.S.C. § 2675 of the Federal Tort Claims act by giving formal written notice to the USA through the filing of a Form 95 with the USPS on May 28, 2025.

8. USPS has not attempted to settle Plaintiff's case and there has been no resolution of Plaintiff's claims to date.

9. More than six months have passed since the Form 95 was filed and though there has been no official denial of Plaintiff's claim; suit is being filed since there has been no resolution of Plaintiff's Form 95 claim.

10. Upon information and belief, Defendant has staff who are its agents, servants, and employees, and all acts or omissions complained of herein, performed by said agents, servants, and employees, occurred during the course and scope of such agency and/or employment and is imputed to Defendant.

11. The negligent acts, omissions, and liability of Defendant includes its agents, principals, employees and/or servants, both directly and vicariously, pursuant to principals of non-delegable duty, corporate liability, apparent authority, agency, ostensible agency and/or respondeat superior.

FACTUAL ALLEGATIONS

12. On or about March 6, 2024, Plaintiff was travelling north on Duke Street in Georgetown County, South Carolina.

13. At the same time and place, the USPS Driver, while operating a USPS delivery truck within the scope of his employment, failed to yield the right of way when entering or crossing the roadway.

14. As a direct and proximate result of the USPS Driver's failure to yield, the postal vehicle collided with Plaintiff's vehicle, causing significant property damage and bodily injuries to the Plaintiff.

15. At all relevant times, the Plaintiff exercised due care and was operating his vehicle lawfully.

16. The collision was solely and proximately caused by the negligence of the USPS Driver.

FOR A FIRST CAUSE OF ACTION
(Negligence - Personal Injury and Negligence Per Se)

17. Plaintiff incorporates all allegations of paragraphs above into this cause of action.

18. The USPS Driver was negligent, grossly negligent, negligent per se, willful, wanton, careless, and reckless at the time and place above mentioned in the following particulars:

- a. In failing to yield the right-of-way, in direct violation of S.C. Codes §§ 56-5-2330 and 56-5-2350;
- b. In failing to obey all applicable traffic laws, in direct violation of S.C. Code Ann. § 56-5-730;
- c. In driving recklessly with wanton and/or willful disregard for the safety of other persons or property in violation of S.C. Code § 56-5-2920;
- d. In improperly changing lanes;
- e. In failing to use due care;
- f. In failing to keep a proper lookout;

- g. In failing to use the degree of care and caution that a reasonably prudent driver would have used under the circumstances then and there prevailing;
- h. In failing to apply their brakes;
- i. In operating a motor vehicle with a reckless disregard for the right and safety of others; and
- j. In such other and further particulars as the evidence may show.

19. As a result of the collision on March 6, 2024, the Plaintiff sustained physical injuries and other damages.

20. All of the above acts of negligence, negligence *per se*, willful, wanton, careless, and reckless conduct are in violation of the statutes, regulations, rules and laws of the State of South Carolina, and are the direct and proximate cause of the injuries and damages suffered by the Plaintiff.

21. Under the doctrine of respondeat superior, USA is liable for the negligent acts of the USPS Driver committed within the course and scope of his employment.

22. As a direct and proximate result of the USPS Driver's negligence, Plaintiff sustained serious bodily injuries including neck, back, and shoulder injuries, incurred medical expenses, pain and suffering, emotional distress, and loss of enjoyment of life.

23. Plaintiff continues to suffer from the effects of his injuries and anticipates future medical care and related damages.

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment against the United States of America for:

- a. Actual and compensatory damages in an amount to be proven at trial;
- b. Costs of this action; and
- c. Such other and further relief as the Court deems just and proper.

Respectfully Submitted,

MILLER, DAWSON, SIGAL & WARD, LLC

/s/ Hayden Grooms

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February 17, 2026
North Charleston, SC